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Newsom signs bill on antisemitic speech

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Legislation aimed at eliminating antisemitism in California schools -- without defining the term -- was signed into law by Gov. Gavin Newsom on Tuesday.

Assembly Bill 715, which takes effect next year, creates a new Office of Civil Rights, and within it an antisemitism prevention coordinator to review discrimination complaints and recommend corrective actions. Its authority will include allegations by students, parents or school officials that a teacher has unfairly criticized Israel's government.

The new law "reaffirms California's commitment to inclusion and standing up against bigotry in all its forms," one of the lead authors, Assembly Member Rick Chavez Zbur, D-Los Angeles, said in a statement Tuesday.

Newsom signed the bill on the second anniversary of Hamas' attack on Israel, which killed 1,200 Israelis and triggered an Israeli counteroffensive that has killed more than 67,000 Palestinians. The governor said California "is taking action to confront hate in all its forms" at a time when "antisemitism and bigotry are rising nationwide and globally."

The signing was also praised by the co-chairs of the Legislature's Jewish Caucus, Sen. Scott Wiener, D-San Francisco, and Assembly Member Jesse Gabriel, D-Encino (Los Angeles County), who said the new law sends a message that "hate has no place in our schools."

During the legislative process, sponsors of the bill, led by the Jewish Public Affairs Committee of California, cited a state Department of Education report that a high school teacher in San Jose had told students in 2023 that Israel was a settler-colonial state. The department also said an instructor at the Tamalpais Union High School District in Marin County told students last October that the schools had a day off for Rosh Hashanah, the Jewish New Year, but not for Indigenous Peoples Day "because we have too many Jews in the district."

But the law's message may not be entirely clear, and it could end up being defined in court.

As originally drafted, AB715 could have legitimized complaints over criticism of the policies of Israel's government. That language was replaced in the final days of the legislative session by an endorsement of a strategy to counter antisemitism adopted by the Biden administration, which draws from standards set in 2016 by the 35-nation International Holocaust Remembrance Alliance. Those standards do not expressly equate anti-Zionism and antisemitism, but they classify as antisemitic any instruction that "might be deemed as delegitimizing of the Israeli state." But the Biden strategy also embraces another document that clarifies that criticism of Israel and its policies is not antisemitic.

The bill does not define what encompasses antisemitism, something opponents have said could put any comments about Israel's government under a microscope.

The final version sailed through the Legislature on unanimous votes despite opposition from the California Teachers Association, the California School Boards Association and the American Civil Liberties Union.

Another opponent was the anti-Zionist group Jewish Voice for Peace. Seth Morrison, a leader of the group's Bay Area chapter, said the new law is likely to be challenged in court, but in the meantime will make some teachers too fearful to even discuss Israel and Palestine with their students.

Morrison also noted that President Donald Trump has been targeting California educational institutions, particularly the University of California, with accusations of antisemitism.

Trump has demanded $1 billion from the university to settle complaints about its handling of claims of antisemitism at UCLA, a demand Newsom has promised to contest in court. And UC Berkeley says it has provided the Trump administration the names of 160 students, faculty and staff, along with information about their "potential connection to reports of alleged antisemitism," to cooperate with a federal investigation.

With the signing of AB715, Morrison said, the governor's "hypocrisy in claiming to be truly progressive and the opposite of Trump is deeply disappointing."

A similar critique came from Hussam Ayloush, chief executive in California of the Council on American-Islamic Relations.

"This is the same censorship playbook used by the Trump administration: weaponize vague standards, target teachers, and erase Palestinian history and human rights from curricula," he said.

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